

Short title,
citation
and extent.

2.—(1) This Act may be cited as the Juries Act, 1954; and the Juries Acts, 1825 to 1949, and this Act in so far as it relates to England and Wales, may be cited together as the Juries Acts, 1825 to 1954.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 42

Slaughterhouses Act, 1954

ARRANGEMENT OF SECTIONS

PART I

PROVISIONS RELATING TO ENGLAND AND WALES

Section

1. Functions of local authorities.
2. Charges in respect of public slaughterhouses.
3. Grant and renewal of licences.
4. Restriction of private slaughterhouses.
5. Compensation for closure or refusal of licence.
6. Interpretation and construction (Part I).

PART II

PROVISIONS RELATING TO SCOTLAND

7. Duty of local authorities in regard to slaughtering facilities.
8. Provision of public slaughterhouses.
9. Registration in respect of private slaughterhouses.
10. Refusal and cancellation of registration.
11. Compensation for closure of private slaughterhouses.
12. Byelaws as to slaughterhouses.
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14. Acquisition of land.
15. Borrowing by local authorities.
16. Interpretation and construction (Part II).
17. Repeal or modification of local enactments.
18. Savings.

PART III

GENERAL

19. Expenses.
20. Short title, extent and repeal.

SCHEDULES:

- First Schedule—Special saving for certain slaughterhouses licensed or registered before 1st October, 1939.
Second Schedule—Enactments repealed.
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An Act to make local authorities responsible for the time being for securing that adequate slaughterhouse facilities are available locally; to explain and amend the law with respect to the provision by local authorities of public slaughterhouses, the making of charges in respect of such slaughterhouses and the grant and renewal of licences under section fifty-seven of the Food and Drugs Act, 1938; to make further provision with respect to the regulation and restriction of private slaughterhouses and the payment of compensation where a licence or registration in respect of such a slaughterhouse is refused or ceases to be in force; and for purposes connected with the matters aforesaid.
[5th July, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PROVISIONS RELATING TO ENGLAND AND WALES

1.—(1) It shall be the duty of every local authority, if and so far as it appears to them that additional slaughterhouse facilities are required in their district having regard to the reasonable requirements of persons making use of such facilities, to make such use of their powers under any enactment or statutory order as they think expedient for securing the provision of the facilities required.

(2) It is hereby declared that the power of a local authority under subsection (1) of section sixty of the Food and Drugs Act, 1938, to provide public slaughterhouses is exercisable in either of the following ways, that is to say—

- (a) by acquiring (whether by purchase, lease or otherwise) or appropriating land and providing slaughterhouse facilities there; or
- (b) by acquiring (whether by purchase, lease or otherwise) land on which such facilities have been provided by other persons and securing that such facilities continue to be provided there;

and that, without prejudice to the effect of section ninety-six of the said Act (which incorporates in the Act certain ancillary provisions of the Public Health Act, 1936), the purposes for which a local authority may be authorised by the Minister of

PART I
—cont.

Housing and Local Government to purchase and compulsorily include the purposes of the said section sixty; and any reference in Part V of the said Act of 1938 to a local authority providing a slaughterhouse shall be construed accordingly.

(3) Where a local authority have (whether before or after the commencement of this Act) provided a public slaughterhouse in the exercise of the said power, or of any other power conferred by a local Act or statutory order, they may make such arrangements as they think expedient for securing that all the activities of the slaughterhouse, or any particular activities, are carried on there by servants or agents of theirs to the exclusion of other persons:

Provided that a local authority shall not exercise the powers conferred by this subsection in such a manner as to deny to any religious community reasonable facilities for obtaining as food the flesh of animals slaughtered by the method specially required by their religion.

Charges in
respect of
public
slaughter-
houses.

2.—(1) Subject to the provisions of this section, a local authority who have provided a public slaughterhouse may make charges, according to scales determined by them from time to time, in respect of the use of the slaughterhouse or of any services provided there.

(2) Every scale of charges determined by a local authority for the purposes of this section shall be published by them in at least one newspaper circulating in their district and in such other manner (if any) as they think expedient for informing persons interested; and a copy of every scale of charges so published shall be sent by the authority to the Minister of Food.

(3) If it appears to the Minister of Food that a scale of charges determined by a local authority for the purposes of this section is in any respect unreasonable, he may, after consultation with the authority, direct them—

(a) to make such alterations in the scale as he considers appropriate, and

(b) except with his approval, not to depart from the scale as altered for such period as he may specify;

and the authority shall comply with the direction.

(4) The following enactments shall cease to have effect, that is to say:—

(a) paragraph (b) of subsection (2) of section sixty of the Food and Drugs Act, 1938 (which enables local authorities with the approval of the Minister of Housing and Local Government to make charges in respect of a public slaughterhouse provided by them); and

- (b) so much of any local Act or statutory order as authorises a local authority to make charges in respect of a public slaughterhouse or to make byelaws for that purpose.

PART I
—cont.

3.—(1) Where, after the commencement of this Act and before the first day of July, nineteen hundred and fifty-six, a slaughterhouse licence is granted or renewed by a local authority, the period fixed by the authority for the licence to remain in force or, as the case may be, the period for which it is renewed may, notwithstanding anything in subsection (7) of section fifty-seven of the Food and Drugs Act, 1938 (which relates to the duration of licences under that section in respect of slaughterhouses and knackery yards), exceed thirteen months so long as it does not end later than the thirty-first day of July, nineteen hundred and fifty-nine: Grant and renewal of licences.

Provided that this subsection shall not apply in any case where it appears to the local authority that the premises in respect of which the licence is granted or renewed are, so far as they are to be used for slaughter, to be used wholly or mainly for the slaughter of horses.

(2) Notwithstanding anything in the said section fifty-seven, no slaughterhouse licence shall, except with the consent of the Minister of Food, be granted or renewed by a local authority after the commencement of this Act unless the premises in respect of which the application for the grant or renewal is made—

- (a) have since the commencement of the said Act of 1938 been used as a slaughterhouse under the authority of a licence granted under the said section fifty-seven; or
- (b) were at any time during the period of five years immediately preceding the said commencement in use as a slaughterhouse and registered or licensed as such under any enactment repealed by that Act.

(3) Without prejudice to any other discretion of theirs in relation to the grant or renewal of licences under the said section fifty-seven, or to any right of appeal conferred by subsection (6) of that section, a local authority may refuse an application made to them for the grant or renewal of a slaughterhouse licence in respect of any premises if they are not satisfied that the requirements of section thirteen of the said Act of 1938 (which contains provisions relating to hygiene and cleanliness in places where food is prepared for sale, &c.), or of any regulations made under paragraph (a) of subsection (1) of section eight of that Act (which relates to measures against danger to health resulting from the preparation and distribution of food), are complied with in respect of those premises, or will be complied with before the date on which the licence or renewed licence comes into force.

PART I
—cont.

(4) In the said section fifty-seven—

- (a) paragraph (b) of the proviso to subsection (2) and subsection (3) (under which a licence under that section authorising a person to keep premises as a slaughterhouse or knacker's yard must be granted as of right where the premises were previously registered or licensed under an enactment replaced by that section, except where they are unsuitable, or the applicant is not a proper person) shall cease to have effect; and
- (b) in paragraph (a) of the said proviso (which requires premises to be inspected where the application is for the grant of a fresh licence but not when it is for the renewal of an existing licence) for the words "grant a licence, otherwise than by way of renewal of an existing licence" there shall be substituted the words "grant or renew a licence."

(5) The provisions contained in the First Schedule to this Act (being provisions which, in relation to slaughterhouses, reproduce in a modified form and with temporary effect the enactments mentioned in paragraph (a) of the last foregoing subsection) shall have effect with respect to slaughterhouses to which those enactments apply.

(6) Where a person was immediately before the commencement of this Act authorised to keep any premises as a slaughterhouse by virtue only of a notice served on him under subsection (3) of the said section fifty-seven (which makes a local authority's notice to carry out works equivalent to a temporary licence), that person shall for all purposes of the Food and Drugs Act, 1938, and this Part of this Act be deemed to be the holder of a slaughterhouse licence in respect of those premises limited to expire at the end of six weeks beginning with the date of the commencement of this Act.

Restriction
of private
slaughter-
houses.

4.—(1) The power of a local authority under subsection (2) of section sixty-one of the Food and Drugs Act, 1938 (which authorises the closure of private slaughterhouses and restrictions on the establishment of private slaughterhouses in a district where the local authority have provided a public slaughterhouse), to make such a determination as is mentioned in that subsection shall be exercisable notwithstanding that the authority have not provided a public slaughterhouse, if the authority are of opinion that slaughterhouse facilities in their district ought to be abolished or reduced having regard to the existence of adequate alternative slaughterhouse facilities provided by another local authority; and subsections (3) and (4) of that section shall have effect accordingly.

(2) Where a local authority are satisfied that the slaughterhouse facilities available in their district are adequate for the time being having regard to the reasonable requirements of

persons making use of such facilities, and that no additional facilities are required in the district, they may by a resolution determine that, after the date when the resolution has effect, no slaughterhouse licence will be granted or renewed by them in respect of any premises in their district which were not licensed on that date; or that such a licence will be granted or renewed only in special cases and with the consent of the Minister of Food:

Provided that a resolution under this subsection shall not have effect until it has been approved by that Minister.

(3) Subsection (3) of section sixty-one of the Food and Drugs Act, 1938 (which relates to the publication of resolutions under subsection (2) of that section and their approval by the Minister of Food), except so much thereof as requires a copy of the resolution to be served on every person licensed to keep a slaughterhouse within the district, shall apply in relation to a resolution under the last foregoing subsection as it applies in relation to a resolution under that section.

(4) Where a resolution of a local authority under the said section sixty-one has taken effect (whether before or after the commencement of this Act) and any premises used as a slaughterhouse have under subsection (4) of that section been exempted from the operation of the resolution, or the local authority since the passing of the resolution have in the exercise of a power reserved for them under the said subsection (4) granted a fresh slaughterhouse licence in respect of any premises in their district, then in neither case shall the local authority refuse any subsequent application for the grant or renewal of a slaughterhouse licence in respect of the premises in question, unless—

- (a) the Minister of Food has consented to the refusal; or
- (b) the authority are not, in relation to the premises, satisfied as mentioned in subsection (3) of section three of this Act;

and in any case to which paragraph (a) of this subsection applies no appeal against the refusal shall lie under subsection (6) of section fifty-seven of the Food and Drugs Act, 1938.

(5) Subsection (5) of section sixty-one of the said Act (under which the Minister of Food may impose conditions as to renewing the licence of a slaughterhouse exempted by a resolution under that section) shall cease to have effect.

5.—(1) Where in consequence of a resolution of a local authority Compensation having effect under subsection (2) of section sixty-one of the Food and Drugs Act, 1938, a slaughterhouse licence in respect of any premises ceases to have effect, any person having an interest in those premises, or in any land held therewith, being an interest for closure or refusal of licence.

PART I
—cont.

of which the value before the resolution had effect is reduced in consequence of the resolution, shall be entitled to be paid by the authority by way of compensation an amount equal to the reduction.

(2) Where a resolution of a local authority under the said subsection (2), or under subsection (2) of the last foregoing section, has taken effect, being a resolution passed before the first day of January, nineteen hundred and fifty-five, then if—

- (a) an application for the grant of a slaughterhouse licence in respect of any premises in the district, being an application made by the occupier of the premises either before or not more than seven days after the date of the passing of the resolution, is refused by the local authority after that date; and
- (b) those premises were not licensed on that date, but were on the first day of October, nineteen hundred and thirty-nine licensed and in use as a slaughterhouse,

any person having an interest in those premises, or in any land held therewith, being an interest of which the value is reduced in consequence of the resolution or the local authority's refusal of the application, shall be entitled to be paid by the authority by way of compensation an amount equal to the reduction.

(3) The foregoing subsections refer only to resolutions passed after the commencement of this Act.

(4) Where a resolution of a local authority under subsection (2) of the said section sixty-one has taken effect (whether before or after the commencement of this Act) having been passed after the first day of January, nineteen hundred and fifty-four, and before the said commencement, and a person had on the date of the passing of the resolution an interest in premises in the district of the authority which were not on the last-mentioned date being used as a slaughterhouse, but which—

- (a) were on the first day of October, nineteen hundred and thirty-nine, licensed and in use as a slaughterhouse; or
- (b) not having been then licensed and in use as aforesaid were licensed on the date of the passing of the resolution,

or in any land held with such premises, being an interest of which the value before the resolution had effect has been reduced in consequence of the resolution, then if before the expiration of a period of fourteen days beginning with the date of the commencement of this Act or the date when the resolution took effect (whichever is the later) that person makes an application to the local authority for the purposes of this subsection, he shall be entitled to be paid by the authority by way of compensation an amount equal to the said reduction.

(5) Where after the commencement of this Act an application for the grant or renewal of a slaughterhouse licence in respect of any premises to which subsection (4) of the last foregoing section applies is refused by a local authority otherwise than on the grounds specified in paragraph (b) of that subsection, any person having an interest in the premises, or in any land held therewith, being an interest of which the value is reduced in consequence of the refusal, shall be entitled to be paid by the authority by way of compensation an amount equal to the reduction.

(6) In ascertaining for the purposes of this section what was at any material time the value of a person's interest in premises or land held therewith, the following provisions shall apply, that is to say:—

- (a) the value of the interest at the material time shall be taken to be the amount which the interest would have realised at that time on a sale thereof in the open market by a willing seller;
- (b) account shall be taken of the value of any plant or machinery, being fixtures, which were on the premises at the said time;
- (c) in relation to the value of the interest before the event giving rise to compensation under this section in respect of that interest, it shall be assumed that the sale referred to in paragraph (a) of this subsection would have been to a purchaser having reason to suppose that an application by him to the local authority for the grant of a slaughterhouse licence in respect of the premises would be granted subject to the premises being, or being rendered, suitable for use as a slaughterhouse;
- (d) subject to paragraph (b) of this subsection, no regard shall be had to goodwill or to any other matter not directly based on the value of the premises or land as such.

(7) Where any dispute arises as to whether compensation is payable to any person under this section, or as to the amount of any such compensation, the dispute shall be referred to and determined by the Lands Tribunal.

(8) Where a local authority have incurred any liability to pay any sums by way of compensation under this section, the Minister of Food may make a grant to the authority of an amount not exceeding one half of those sums.

(9) Subsection (6) of section sixty-one of the Food and Drugs Act, 1938 (which provides for the payment of compensation for loss sustained by the owner and occupier of any premises affected by a resolution under that section), shall cease to have effect, and section eighty-six of that Act (which provides for disputes as to compensation being referred to arbitration) shall not apply in relation to compensation payable under this section.

PART I
—*cont.*Interpretation
and
construction
(Part I).

6.—(1) In this Part of this Act, except where the context otherwise requires,—

“slaughterhouse” means a place for slaughtering animals the flesh of which is intended for sale for human consumption, and includes any place available in connection therewith for the confinement of animals while awaiting slaughter there or for keeping, or subjecting to any treatment or process, products of the slaughtering of animals there;

“slaughterhouse facilities” means facilities for carrying on the activities of a slaughterhouse, including plant and apparatus and the services of persons as slaughtermen or otherwise;

“slaughterhouse licence” means a licence under section fifty-seven of the Food and Drugs Act, 1938, authorising the occupier of any premises to keep them as a slaughterhouse; and

“statutory order” means any order, byelaw or other instrument having effect by virtue of an Act of Parliament, or confirmed by Parliament.

(2) For the purposes of this Part of this Act premises shall be treated as having been licensed at any time if, and only if, there was at that time in force or deemed to be in force a slaughterhouse licence in respect of those premises.

(3) Subsection (1) of this section, so far as it defines the expression “slaughterhouse”, shall apply to the interpretation of the Food and Drugs Act, 1938, as it applies to the interpretation of this Part of this Act.

(4) The said Act of 1938 and this Part of this Act shall be construed as if this Part of this Act were contained in Part V of that Act.

PART II

PROVISIONS RELATING TO SCOTLAND

Duty of local
authorities
in regard to
slaughtering
facilities.

7.—(1) It shall be the duty of every local authority to satisfy themselves that adequate slaughterhouse facilities are available for persons requiring the slaughter of animals in their area, having regard to the existence of slaughterhouse facilities in that area and the areas of other local authorities.

(2) Subject to the following provisions of this Part of this Act, where a local authority are not satisfied as aforesaid, they may with the approval of the Secretary of State—

(a) provide and, if they think fit, operate a public slaughterhouse; or

(b) register in accordance with the provisions of this Part of this Act any person who proposes to use any premises as a slaughterhouse.

8.—(1) The power of a local authority to provide a public slaughterhouse shall be exercisable in any of the following ways, that is to say—

PART II
—cont.

Provision of
public
slaughter-
houses.

- (a) by re-opening as a slaughterhouse premises previously used as a slaughterhouse by that local authority;
- (b) by acquiring (whether by purchase, lease or otherwise), or appropriating land and providing slaughterhouse facilities there;
- (c) by acquiring (whether by purchase, lease or otherwise) premises which have been in use as a slaughterhouse and continuing to use them as such.

(2) A local authority by whom a slaughterhouse has been provided under the last foregoing section or under any other enactment—

- (a) may make charges in respect of the use of the slaughterhouse, and in respect of any services provided by them in connection therewith; and
- (b) may provide plant or apparatus for disposing of or treating waste matter or refuse, or processing by-products resulting from the slaughter of animals in such a slaughterhouse.

(3) In fixing or varying any such charges as aforesaid a local authority shall consult with such persons or organisations as appear to them to be representative of interests substantially affected by such charges.

9.—(1) Subject to the provisions of this Part of this Act no person other than a local authority shall use any premises as a slaughterhouse for the slaughter of any kind of animal unless he is registered in respect of the premises for that purpose by the local authority, and any person who contravenes the provisions of this subsection shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such fine and imprisonment.

Registration
in respect
of private
slaughter-
houses.

(2) An application for registration in respect of any premises under this section shall be made by the person who proposes to use the premises, and, in the case of an application in respect of premises not yet erected, or of premises to be reconstructed, shall be accompanied by plans showing the proposed works.

(3) Subject to the provisions of this Part of this Act the local authority may on an application for registration under this section being duly made by a person in respect of any premises, register that person in respect of the premises, and shall upon so registering him issue to him a certificate in that behalf.

PART II
—cont.

(4) A local authority may for the protection of the public health prohibit the slaughter on any premises, in respect of which a person is to be registered in pursuance of this section, of any kind of animal other than that specified in the certificate relating to those premises to be issued under the last foregoing subsection.

**Refusal and
cancellation
of registration.**

10.—(1) Subject to the provisions of this section, where an application is made to a local authority under the last foregoing section in respect of any premises and the authority are satisfied that no further slaughterhouse accommodation is required in their area, the authority shall refuse the registration.

(2) Subject to the provisions of this section, if a local authority are satisfied that any slaughterhouse in their area in respect of which a registration is in force under the last foregoing section is no longer required, the authority shall cancel the registration.

(3) Subject to the provisions of this section, if in the case of an application for registration under the last foregoing section or of a registration under that section, it appears to the local authority—

(a) that any person applying for registration under the last foregoing section or who is so registered is not a suitable person to make use of any premises as a slaughterhouse; or

(b) that the requirements of any enactment relating to slaughterhouses are not complied with in connection with the premises specified in that application or that any such requirements are not complied with in connection with the premises specified in that registration or in connection with the business carried on in such premises; or

(c) that the premises or any part thereof are otherwise inadequate or unsuitable for use as a slaughterhouse,

the authority shall refuse or, as the case may be, shall cancel the registration.

(4) A local authority may for the protection of the public health vary any registration under the last foregoing section by prohibiting the slaughter on any premises to which the registration relates of any kind of animal other than that which may be specified by that authority.

(5) A local authority shall not refuse, cancel or vary any registration unless—

(a) they have served on the applicant or the person registered in respect of the premises a notice of their proposal so to do, stating the place and time, not being less than seven days after the date of the service of the

notice, at which they will take the matter into consideration, and informing him that he may attend or be represented before them, with any witnesses he desires to call, at that place and time to show cause why the authority should not, for reasons specified in the notice, proceed with the proposal; and

- (b) the applicant or person registered as aforesaid fails to show cause to their satisfaction.

(6) If the local authority refuse, cancel or vary a registration they shall forthwith give the applicant or the person registered in respect of the premises notice of their decision in the matter, and any such notice shall state the grounds on which that decision is based and the time within which an appeal to the Secretary of State may be brought in accordance with the provisions of subsection (8) of this section.

(7) An application for registration shall, if not already determined by the local authority, be deemed to have been refused by the authority at the expiry of three months from the date upon which the application was made.

(8) A person aggrieved by a decision of a local authority under this section to refuse, cancel or vary any registration under the last foregoing section may appeal to the Secretary of State, and any such appeal shall be made within one month from the date on which notice of the said decision was served upon the person desiring to appeal or from the date on which a refusal is deemed to have been made under the provisions of the last foregoing subsection.

(9) For the purposes of the last foregoing subsection any prohibition under subsection (4) of the last foregoing section shall be treated as a refusal of a registration under that section.

11.—(1) Where—

Compensation
for closure
of private
slaughter-
houses.

- (a) a registration of a person in respect of premises for use as a slaughterhouse has been refused on an application made before the first day of January, nineteen hundred and fifty-five, by virtue of the operation of subsection (1) of the last foregoing section, and the premises were lawfully in use as a slaughterhouse on the first day of October, nineteen hundred and thirty-nine; or
- (b) a registration of a person in respect of premises for use as a slaughterhouse has been cancelled by virtue of the operation of subsection (2) of the last foregoing section;

any person having an interest in those premises or in any land held therewith, being an interest of which the value immediately before the refusal or cancellation, as the case may be, is reduced

PART II
—cont.

in consequence of such refusal or cancellation, shall be entitled to be paid by the authority by way of compensation an amount equal to that reduction.

(2) In ascertaining for the purposes of this section what was at any material time the value of a person's interest in premises or land held therewith, the following provisions shall apply, that is to say:—

- (a) the value of the interest at the material time shall be taken to be the amount which the interest would have realised at that time on a sale thereof in the open market by a willing seller;
- (b) account shall be taken of the value of any plant or machinery, being fixtures, which were on the premises at the said time;
- (c) in relation to the value of the interest before the event giving rise to compensation under this section in respect of that interest, it shall be assumed that the sale referred to in paragraph (a) of this subsection would have been to a purchaser having reason to suppose that an application by him to the local authority for a registration in respect of the premises would be granted subject to the premises being, or being rendered, suitable for use as a slaughterhouse;
- (d) subject to paragraph (b) of this subsection, no regard shall be had to goodwill or to any other matter not directly based on the value of the premises or land as such.

(3) Where any dispute arises as to whether compensation is payable to any person under this section, or as to the amount of any such compensation, the dispute shall be referred to and determined by the Lands Tribunal for Scotland:

Provided that until sections one to three of the Lands Tribunal Act, 1949, come into force as regards Scotland this subsection shall have effect as if for the reference to the Lands Tribunal for Scotland there were substituted a reference to an official arbiter appointed under the Acquisition of Land (Assessment of Compensation) Act, 1919, and sections three, five and six of that Act shall apply, subject to any necessary modifications, in relation to the determination of any question under this Act by an arbiter so appointed.

(4) Where a local authority has incurred any liability to pay any sums by way of compensation under subsection (1) of this section, the Secretary of State may make a grant to the authority of an amount not exceeding one half of those sums.

Byelaws as to
slaughter-
houses.

12.—(1) A local authority may, and if required by the Secretary of State shall, make byelaws for securing that slaughterhouses are kept in a clean and sanitary condition, and are properly managed and conducted.

(2) The Secretary of State shall be the confirming authority as respects byelaws made under the last foregoing subsection.

(3) If and so far as a byelaw made under this section is inconsistent with any regulation relating to slaughterhouses or the slaughter of animals therein, the latter shall prevail.

13.—(1) Subject to the provisions of this section, any officer of a local authority authorised for the purpose shall on producing, if so required, some duly authenticated document showing his authority, have a right to enter any premises at all reasonable hours—

Power to
enter premises.

(a) for the purpose of ascertaining whether there is or has been on, or in connection with, the premises any contravention of the provisions of this Act or of any byelaws made thereunder; and

(b) generally for the purpose of the performance by the authority of their functions under this Act, or such byelaws.

(2) If it is shown to the satisfaction of a justice of the peace on information in writing and on oath—

(a) that admission to any premises has been refused, or that refusal is apprehended, or that the premises are unoccupied, or the occupier is temporarily absent, or that the case is one of urgency, or that an application for admission would defeat the object of the entry; and

(b) that there is reasonable ground for entry into the premises for any such purpose as aforesaid,

the justice may by warrant under his hand authorise the local authority by any authorised officer to enter the premises, if need be by force:

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier, or that the premises are unoccupied or that the occupier is temporarily absent, or that the case is one of urgency, or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer entering any premises by virtue of this section, or of a warrant issued thereunder, may take with him such other persons as may be necessary, and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectively secured against unauthorised entry as he found them.

(4) Every warrant granted under this section shall continue in force for a period of one month.

(5) Any reference in this section to a justice of the peace shall include a reference to the sheriff and to a magistrate.

PART II*—cont.***Acquisition
of land.**

14.—(1) A local authority may be authorised by the Secretary of State to purchase compulsorily any land, whether situated within or outside its area, for the purpose of any of their functions under this Act.

(2) The Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, shall apply in relation to the compulsory purchase of land under this section as if subsection (1) thereof had been in force immediately before the commencement of that Act.

**Borrowing
by local
authorities.**

15. In the application of Part XII of the Local Government (Scotland) Act, 1947, to the repayment of any sums borrowed by a local authority for the purposes of this Act the Sixth Schedule to that Act shall have effect subject to the following amendment—

“ 30. Slaughterhouses Such period not exceeding sixty years
 Act, 1954. as the Secretary of State may fix.”

**Interpretation
and
construction
(Part II).**

16. In this Part of this Act, unless the context otherwise requires—

“ animal ” means cattle, sheep, goats, swine and horses;
and “ horses ” includes asses and mules;

“ enactment ” includes an enactment contained in a local Act and any order, regulation or other instrument having effect by virtue of an Act;

“ local authority ” means a county council or a town council;

“ premises ” means a building or any part thereof and any forecourts, yards and places of storage used in connection therewith;

“ slaughterhouse ” means any premises used for slaughtering animals the flesh of which is intended for sale for human consumption and includes any place other than premises used in connection therewith;

“ slaughterhouse licence ” means a licence under section thirty-three of the Public Health (Scotland) Act, 1897, authorising the occupier of any premises to keep them as a slaughterhouse.

**Repeal or
modification
of local
enactments.**

17. The provisions of this Act shall have effect in substitution for the provisions of any local enactment relating to slaughterhouses and of like effect, and any such enactment shall, in so far as it is inconsistent with the provisions of this Act, cease to have effect.

Savings.

18.—(1) Any byelaw made under any enactment repealed by this Act and in force at the commencement of this Act shall not be invalidated by such repeal but shall have effect as if it had been made under this Act, and may be amended, varied, revoked or enforced accordingly.

(2) Any slaughterhouse provided by a local authority under any enactment repealed by this Act, and in use as a slaughterhouse on the twenty-ninth day of June, nineteen hundred and fifty-four, shall be deemed to be a public slaughterhouse provided by that local authority under this Act and the provisions thereof shall apply accordingly.

PART II
—cont.

(3) Any slaughterhouse licence granted in respect of premises which were in use as a slaughterhouse by virtue of that licence on the twenty-ninth day of June, nineteen hundred and fifty-four, shall not be invalidated by the repeal of section thirty-three of the Public Health (Scotland) Act, 1897 (which relates to the licensing of slaughterhouses) but shall be deemed to be a registration made by a local authority in pursuance of section nine of this Act.

PART III

GENERAL

19. There shall be paid out of moneys provided by Expenses. Parliament—

- (a) any sums required by the Minister of Food for making grants under subsection (8) of section five of this Act;
- (b) any sums required by the Secretary of State for making grants under subsection (4) of section eleven of this Act; and
- (c) any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under Part I of the Local Government Act, 1948, or the Local Government (Financial Provisions) (Scotland) Act, 1954.

20.—(1) This Act may be cited as the Slaughterhouses Act, 1954.

Short title,
extent and
repeal.

- (2) Nothing in Part I of this Act extends to Scotland.
- (3) Part II of this Act extends to Scotland only.
- (4) Nothing in this Act extends to Northern Ireland.
- (5) The enactments specified in the second column of the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES**Section 3.****FIRST SCHEDULE****SPECIAL SAVING FOR CERTAIN SLAUGHTERHOUSES LICENSED OR
REGISTERED BEFORE 1ST OCTOBER, 1939**

1. The premises to which this Schedule applies are the following, that is to say:—

- (a) premises which were on the thirtieth day of September, nineteen hundred and thirty-nine, registered and in use as a slaughterhouse; and
- (b) premises in respect of which a licence without limitation of time authorising their use as a slaughterhouse was in operation on that date and which were then in use as such.

2.—(1) Where at any time before the first day of January, nineteen hundred and fifty-five, an application is made to a local authority for the grant or renewal of a slaughterhouse licence in respect of any premises to which this Schedule applies, then subject to the next following sub-paragraph and to any resolution of the authority which may have taken effect under section sixty-one of the Food and Drugs Act, 1938, or under subsection (2) of section four of this Act, the authority shall not refuse the application unless they are satisfied that—

- (a) the premises named in the application are not suitable for use as a slaughterhouse; and
- (b) it is not reasonably practicable to render them suitable for such use.

(2) If before the application was made the authority have passed such a resolution as is mentioned in the foregoing sub-paragraph, but the resolution has not taken effect, the authority may if they think fit adjourn the application pending the decision of the Minister of Food whether or not to approve the resolution.

3.—(1) If the authority are satisfied that the premises are not suitable for use as a slaughterhouse but determine to grant or renew the licence, they may in doing so serve a notice on the applicant specifying the works which are in their opinion necessary to render the premises suitable as aforesaid and the period (not exceeding three months from the date of the grant or renewal) within which they require those works to be executed.

(2) The authority may at any time extend the said period if the works have been begun and appear to them to be making satisfactory progress.

(3) If at the expiration of the said period (whether or not extended under the foregoing sub-paragraph) the works have not been completed to the satisfaction of the authority, the authority may cancel the licence in respect of the premises (if it is then still in force).

4. Where a local authority serve on any person a notice under the foregoing paragraph or cancel a licence thereunder, all the provisions of the Food and Drugs Act, 1938, relating to appeals against the refusal of a local authority to grant or renew a licence under section fifty-seven of that Act shall apply as if the notice or cancellation were such a refusal.

SECOND SCHEDULE

Section 20.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	Section two hundred and seventy-eight. Sections two hundred and eighty to two hundred and eighty-four. Section two hundred and eighty-six.
60 & 61 Vict. c. 38.	The Public Health (Scotland) Act, 1897.	Section thirty-three so far as relating to slaughterhouses. Section thirty-four.
1 & 2 Geo. 6. c. 56.	The Food and Drugs Act, 1938.	In section fifty-seven, paragraph (b) of the proviso to subsection (2) and subsection (3). In section sixty, paragraph (b) of subsection (2). In section sixty-one, subsections (5) and (6). In section one hundred, the definition of "slaughterhouse".
10 & 11 Geo. 6. c. 43.	The Local Government (Scotland) Act, 1947.	In section one hundred and sixty, subsection (1).

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Public Health (Scotland) Act, 1897 ...	60 & 61 Vict. c. 38.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 49.
Food and Drugs Act, 1938	1 & 2 Geo. 6. c. 56.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 43.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Local Government (Financial Provisions) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 13.

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